

Amendment No. 1 to HB0217

Bulso
Signature of Sponsor

AMEND Senate Bill No. 265

House Bill No. 217*

by deleting all language after the caption and substituting:

WHEREAS, in Fiscal Year 2024-2025, Berry Field Nashville Airport (BNA), under the authority of the Metropolitan Nashville Airport Authority (MNAA), received approximately \$23,000,000 from this State; and

WHEREAS, in Fiscal Year 2025-2026, BNA, under the authority of the MNAA, has proposed funding of approximately \$34,300,000 from this State; and

WHEREAS, BNA, under the authority of the MNAA, shall use such funds to facilitate the name change of BNA to Trump International Airport in accordance with this act; now, therefore,
BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 42, Chapter 4, is amended by adding the following new section:

(a) As used in this section:

(1) "Airport" means an international airport operated by the authority that is operational on the effective date of this act; and

(2) "Authority" means a metropolitan airport authority created under this chapter in a county having a metropolitan form of government with a population of more than five hundred thousand (500,000), according to the 2020 federal census or a subsequent federal census.

(b) The airport operated by the authority is hereby designated the "Trump International Airport." The authority is directed to erect suitable signs or affix suitable

markers designating the airport as the "Trump International Airport" and to take other appropriate actions to recognize this designation in accordance with this section.

(c)

(1) For purposes of facilitating the change of the name of an airport identified under subsection (b), the authority shall, as soon as practicable:

(A) If the authority has one (1) or more registered trademarks with the United States patent and trademark office (USPTO) for purposes of operating the airport:

(i) Petition the USPTO to amend each trademarked name relating to the airport to "Trump International Airport"; or

(ii) File a statement with the USPTO surrendering or abandoning each trademarked name and subsequently apply to trademark each name relating to the airport as "Trump International Airport";

(B) Upon changing each name of the airport in accordance with subdivision (c)(1)(A):

(i) Revise or amend the name of the airport consistent with subsection (b) in all contracts between the airport or the authority and third parties. If the parties to a contract cannot agree to revise or amend the contract in accordance with subsection (b), the authority or airport shall, upon renewal, termination, or cancellation of the contract, renew or enter into a new contract with references to the airport as "Trump International Airport" in accordance with subsection (b);

(ii) Comply with subsection (b) upon execution of a new contract between the authority or the airport and a third party;

(iii) Revise or amend each registered or trademarked name of the airport with all local, state, and federal departments and agencies in accordance with applicable local, state, and federal laws, rules, and regulations; and

(iv) Revise its by-laws or governing documents consistent with subsection (b).

(2) Notwithstanding subdivision (c)(1), the authority or airport may, during the transition period specified under subdivision (c)(1), conduct the business of operating the airport using any registered or trademarked name of the airport with the designation of "doing business as Trump International Airport" or "d/b/a Trump International Airport."

SECTION 2. For purposes of amending by-laws or governing documents and carrying out administrative duties necessary to effectuate this act, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2026, the public welfare requiring it.